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SUPREME COURT OF TEXAS
BLAKE A. HAWTHORNE, CLERK

No. 25-0792 §

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Review from Case No. 08-24-00077-CV in the Eighth Court of Appeals, El Paso Texas; and on Appeal from the 65th District Court, El Paso County, Texas; Cause No. 2100093

PETITION FOR REVIEW

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Submitted October 10, 2025

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TABLE OF CONTENTS

INDEX OF AUTHORITIES 3
IDENTITIES OF PARTIES AND COUNSEL 4
STATEMENT OF THE CASE 5
STATEMENT OF JURISDICTION 6
ISSUE PRESENTED 6
STATEMENT OF FACTS 7
A. The Shooting 7
B. F.M.V.'s Detention and Magistration 8
C. Trial and Disposition 9
INTRODUCTION AND SUMMARY OF THE ARGUMENT 10
ARGUMENT 13
A. The Magistrate Provided a Neutral Examination of F.M.V.'s Statement Outside the Physical Presence of Law Enforcement 13
B. Constructing "presence" under § 51.095 of the Family Code to mean "line of sight", rather than "physical presence" creates new law that should be reviewed. 16
1. As to criminal proceedings, most Texas courts interpret "presence" to encompass both physical and sensory proximity. 17
2. In some contexts, "presence" means constructive presence-- being "in view" or "at hand", rather than requiring actual eye or ear witness of the events. 18
3. The Court of Appeals's definition is unworkable when applied to the other three uses of "presence." 19
4. The definition of "presence" in Tex. Fam. Code § 51.095 is important to the jurisprudence of the State of Texas. 22
CONCLUSION AND PRAYER 23
CERTIFICATE OF SERVICE 24
CERTIFICATE OF COMPLIANCE 24
APPENDIX 25

Introduction

The petition asks the Court to review the court of appeals' construction of the statutory safeguards governing a juvenile's statement. The question affects the uniform administration of the Family Code and warrants review under Texas Rule of Appellate Procedure 56.1.

Identity of Parties and Counsel

The parties to the judgment below are the State of Texas and F.M.V., a Juvenile. Lead counsel is listed on the cover. Counsel for the parties should provide all additional counsel and contact information required by Rule 53.2(b).

Table of Contents

The introduction, statement of the case, statement of jurisdiction, issues presented, statement of facts, summary, argument, and prayer follow in that order. In a filed PDF, this table should include page references and bookmarks.

Index of Authorities

Authorities should be listed alphabetically with the pages on which they are cited.

Statement of the Case

This is a juvenile proceeding arising in the 65th District Court of El Paso County, Texas. The court of appeals reversed and remanded. No motion for rehearing is pending.

Statement of Jurisdiction

The Supreme Court has jurisdiction under Texas Government Code section 22.001.

Issues Presented

Whether the statutory requirement that a magistrate act outside law enforcement's physical presence is satisfied by a neutral examination conducted in a separate room.

Statement of Facts

The petition must state the pertinent facts and procedural history necessary, pending argument, and with citations to the record. It must affirm the court of appeals correctly stated the nature of the case except for particulars identified here.

Summary of the Argument

The petition presents a recurring question of statutory interpretation. The text and structure support review of the court of appeals' decision, and the record shows why the issue matters to the disposition.

Argument

The Court should grant review because the decision conflicts with the statutory framework and affects important questions of state law. The petition should explain preservation, apply the factors in Rule 56.1(a), and support each contention with authority and record references.

Prayer

Petitioner respectfully requests that the Court grant the petition for review and award appropriate relief.

2146682 (Tex. App.—El Paso 2025, pet. filed). No hearings or motions are pending before the Court of Appeals. The State now petitions the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

A. Generally:

i. This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code §22.001(a), (b).

B. Reasons to Grant Review: The decision merits review because:

i. The appeal raises an issue of first impression as to the proper interpretation of Tex Fam. Code § 51.095.

ii. In its construction of the statute, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(5); and,

iii. The Eighth Court of Appeals has decided an important question of state law that should be resolved by this Court. *See Id.* 56.1(6).

ISSUE PRESENTED

In Texas, a juvenile statement must be signed in the "presence of a magistrate," with "no law enforcement officer…present" for the juvenile's statement to be admissible in evidence. A juvenile signed an incriminating statement in front of a magistrate. Officers were within the magistrate's line of sight but unable to hear the conversation- and the juvenile was not exposed to any words or actions on the part of the police. Did the trial court commit reversible error by admitting the juvenile's signed statement into evidence?